

Key Definitions & Related Documents

Key Definitions

Exempt salaried: Defined in accordance with the Federal Labor Standards Act and applicable state wage and hour laws. Generally, exempt associates are paid on a salary basis and receive a predetermined amount of compensation.

Part Time: Defined as less than thirty (30) hours per week. Please note that the number of Reduced Hours as defined for Benefits and Work Authorization requirements may vary.

Full Time: Defined as thirty to forty (30- 40) hours per week.

Related Policies and Processes

[Bench Deployment Policy - US](#)

[US Associate Handbook](#)

Scope

This policy applies to all Exempt Salaried associates of Cognizant and its integrated companies in the US where permitted by local law and immigration requirements, who need to make long-term modifications (of more than 30 days in length) to their standard hours of work. This policy does not apply to contingent workers, fixed term or piece-rate associates. WorkFlex arrangements do not constitute a contract of employment and are subject to management approval and business need.

Guiding Principles

At Cognizant we believe that providing conditions for everyone to thrive is an important part of building winning teams. We strive to meet the evolving needs of our associates while adapting to new ways of working. To that end, we are introducing a Work Flex Policy that will enable more choices regarding when associates engage in work to produce the right outcomes for our company and clients. We expect that our associates will remain committed and connected to their teams and customers no matter when they work.

This policy establishes options for flexible work arrangements in relation to time and schedule (WorkFlex).

Notice, Criteria and Conditions

All Work Flex options below require advance notice (minimum of 14 days) prior to commencing a new schedule and are subject to management approval to ensure business continuity. Associates may need to meet certain criteria for a WorkFlex arrangement as specified in each option. If an arrangement combines more than one option, the associate will need to meet the necessary criteria for all options. Approved WorkFlex arrangements that no longer meet business needs may be changed or discontinued with the Talent Manager's approval by providing the associate with a minimum written notice of seven (7) days in advance.

Associates encouraged to discuss their needs with their Project Manager to determine the schedule that may best fit their situation and would meet client and project commitments. Managers will need to evaluate potential alternatives such as alternating meeting times, utilizing other modes of communication or determining if the output requires concurrent team schedules or overlap. Roles that are schedule driven, or contractually require coverage of specific client business hours for client coverage, or that due to contractual obligations require real-time services to meet client demands, may not be conducive to a WorkFlex arrangement

Approved WorkFlex arrangements are only valid for the current project and/or client. Any changes in client, project, status or country would require a new request. Approved requests will be reviewed regularly for business adequacy and no less than every two (2) years.

A WorkFlex arrangement does not constitute an employment contract and is subject to change at the company's discretion.

Work Authorization /Visa Requirements

Visa dependent associates or those on Work Authorization may request any Full Time scheduling option that does not reduce the number of weekly hours below forty (40). All changes resulting in the number of weekly total hours reduced to less than forty (40), and all requests for Part Time status for Visa dependent associates, require explicit and prior approval from Global Mobility, as some options are not available per USCIS requirements. Please review each option for criteria details and consult the Immigration team with any questions: Relocation@Cognizant.com.

Bench and Deployable Pools

A WorkFlex arrangement is not applicable to a bench assignment or any deployable pool while an associate is assigned to the bench; therefore, bench timelines or requirements will not be changed or extended as a result of a WorkFlex arrangement. Associates moving to the bench would need to accommodate the bench availability requirements and discuss desired WorkFlex arrangements with prospective project teams early in the interview process to explore available WorkFlex options. A WorkFlex approval on a prior project does not guarantee approval for new projects.

A new WorkFlex request would need to be submitted upon assignment to any new project, including those assigned to such project from any bench or deployable pool. Associates must obtain approval prior to commencing any non- standard schedule.

Part Time associates assigned to the bench will be reassigned to Full Time status upon bench assignment. Those wishing to return to Part Time status after assignment to a new project will need to submit a new WorkFlex request. Part Time associates who have not previously completed six (6) months of Full Time service are not eligible for the bench. [You can find the bench policy here.](#)

Work Flex Options

Reduced hours / Part Time

Associates working fewer than thirty (30) hours or the standard Full Time work hours established by the country norm are considered Part Time. See Total Rewards section for potential compensation and benefits changes under this option. Associates may be required to work a minimum number of hours by their project or to retain Part Time Exempt status. Part Time associates must complete a WorkFlex request to update their work status reflecting any Part Time arrangement. Associates on H-1, L-1, TN, or E-3 visa holders are not eligible for Part Time status.

Example: Monday – Friday 6 am-10 am (4 hours per day, 20 hours per week).

Flex Hours

Where permitted by local law or jurisdiction, associate performs job responsibilities during different pre-agreed hours and consists of the same total number of hours worked per week. Scheduling requests may include any of the following or a combination of: working irregular hours, early or late starting times, early or late finishing times, irregular days off, irregular shifts, intermittent work periods, or an extended or compressed work week.

Criteria

All Flex Hours arrangements are available for Full Time or Part Time associates, subject to approval. Associates on a Work Authorization or who are Visa-dependent are eligible to request any Full Time schedule, subject to approval.

Flex Hour Types (Arrangements may combine one or more types)

(Examples are for illustration purposes and not all-inclusive)

- **FLEX TIME**

Under this scheduling option, associates work Full Time hours spread over 5 days a week using a different pre-agreed schedule such as working irregular hours, intermittent hours or early or late start/end times. A Flex Time schedule may also be available for Part Time associates.

Examples (for illustration purposes, not all-inclusive)

- Monday-Friday 1 pm-10 pm (5 days, 9 hours per day, including a 1 hour lunch break for a total of 40 weekly hours),
- Monday-Friday 6 am-10 am, and 6 pm-10 pm (5 days, 8 hours per day on a split shift, for a total of 40 weekly hours and a lunch break scheduled on their own)
- Wednesday–Saturday 8 am-7 pm (4 days, 10 hours per day, including a 1 hour lunch break for a total of 40 weekly hours)

- **Flex week**

Under this scheduling option, associates work Full Time hours that extend beyond a 5-day workweek. Weekends can be included in order to complete the weekly standard hours. This option is only available as permitted by local law or jurisdiction where weekend work is permitted.

Example:

- Monday-Saturday 12 pm-8:30 pm (7.5 hours per day including a 1 hour lunch, 40 weekly hours)

- **COMPRESSED WEEK**

Under this option, associates meet their Full Time hours in less than 5 days per week. This option is available to Full Time associates and where permitted by local law or jurisdiction.

Example:

- Monday-Thursday 8 am-7 pm (11 hours per day including a 1 hour lunch, 40 weekly hours)

Meal Periods and Breaks

Associates are highly encouraged and expected to take breaks to recharge and refuel. Associates for whom any given work period in a day consists of more than four (4) hours of consecutive and non-interrupted work, will need to account for a minimum of thirty (30) minutes for a meal period on their schedule request. Unless otherwise required by local law or jurisdiction, any schedule that consists of four (4) hours or less of consecutive work time, assumes that associates will schedule meal periods on their own.

IT, Systems, and Physical Security

Associates requesting a WorkFlex arrangement are expected to meet all client and Cognizant system requirements (including but not limited to network access requirements, parameters and limitations of such) related to the time and place of work. IT systems required to perform work need to be accessible and equipment/network should be in place in order to commence

WorkFlex arrangements. Any scheduling arrangement outside the normal operating hours of a client or Cognizant site is subject to evaluation and review prior to final approval.

Requesting a Workflex Arrangement

Open communication is key to a WorkFlex arrangement and our new way of working. We encourage associates to discuss their needs with their Home Manager or Project Manager and explore options. [Associates may request a WorkFlex arrangement here](#). We will strive to consider and conclude WorkFlex requests within seven (7) calendar days; however, there may be factors that could delay the outcome, such as additional approvals unique to the request or circumstances.

Reviews

Unless otherwise indicated, WorkFlex arrangements should be reviewed at a minimum every two (2) years or at any time if circumstances have changed, such as client contractual obligations, an associate's performance trend, role, project scope, total number of hours worked, or scheduling changes. A new request must be initiated if there is a change in project, client, country or employment status.

An increase or decrease from the WorkFlex hours may necessitate a compensation change and must be approved by the Talent Manager.

Denials

While we strive to provide flexibility to all our associates, there may be times when a WorkFlex arrangement may not be the right solution. In the event that a request is denied or rejected, associates will be provided with a written response of the reason for denial. Associates who may have been previously ineligible for WorkFlex may resubmit another request upon meeting the stated criteria. Associates whose request was previously denied and have not had a change in eligibility, client, or project, may resubmit another request after 6 months.

Cancellations and Withdrawals

Associates with pending requests that have not yet been finalized may [cancel at any time here](#). Associates who have previously received a WorkFlex approval and wish to withdraw their participation and return to a standard schedule are required to provide fourteen (14) days advance notice and [submit a Request for Withdrawal](#). Withdrawals may be subject to the availability of a position or standard schedule and are subject to approval by their Project Manager, HCM Manager or Account Leadership and their Talent Manager/HRBP.

Leave of Absence and Reasonable Accommodations

This policy does not replace or change existing reasonable accommodations due to medical reasons or disability. Reasonable accommodation requests will continue to be managed by the Benefits Department via NABenefits@Cognizant.com. Part Time associates may not be eligible for certain Leave of Absence benefits, such as Parental Leave and Pregnancy Disability Leave benefits. Additional information regarding reasonable accommodations and eligibility for Leave of Absence may be reviewed in the Leave of Absence and Disability Policy found on cognizantbenefits.com. For religious accommodations, associates should reach out to their Talent Manager.

Performance Management

Associates participating in WorkFlex in the US are not excluded from the performance management process or ratings. In the event that an associate's level of performance declines or is impacted after a WorkFlex arrangement has been approved, project managers may review such arrangement to determine if a standard schedule or arrangement may facilitate better performance outcomes. The company reserves the right to cancel or amend a WorkFlex arrangement at any time.

Compensation

Associates on reduced hours schedules may experience a change in compensation. Associates remaining on forty (40) hours schedules will not experience any change in base salary, merit or performance incentive programs. Associates subject to shift differential may experience compensation changes if a new schedule does/does not meet the criteria for such differential. A change to Part Time status involves a reduction in base salary, Special Pay Allowances, COLA and any bonus or performance incentive programs, proportionate to the reduction in standard weekly work hours. Unless otherwise indicated, any approved changes to associate status (such as changes to Part Time or Full Time status) resulting in changes to base salary will become effective on the following pay period, subject to payroll submission deadlines. Long Term Incentives such as PSU's/RSU's of reduced hours associates may be reduced in proportion to the new total hours worked. Changes to long-term incentives may not be immediately reflected.

Participation in WorkFlex does not impact current enrollment in the Employee Stock Purchase Plan (ESPP) or 401(K) plan, however, reduced hours associates converting to a new annual base salary may need to adjust their percentage of contributions in order to meet the desired annual contribution amounts.

Benefits

Associates seeking a reduced hours schedule totaling less than 30 hours per week are considered Part Time and will NOT be eligible for some benefits and leave programs such as medical, dental, vision or disability coverage. These benefits will end at the end of the month following the effective date of change. For detailed information on the benefits available to Part Time associates, please review the Benefits Guide on cognizantbenefits.com. A change to Part Time status is a Qualifying Life Event and is subject to COBRA. Associates converting from Part Time to Full Time status will have the opportunity to enroll in benefits upon their transfer to Full Time status.

Holidays

In instances where associates work reduced hours and/or an atypical work week (i.e. Saturday-Wednesday) and do not receive the full number of holidays as designated by the Client or Cognizant (whichever is greater), the associate may take the holiday another day (within the same calendar year) at the approval of the client and/or the associate's supervisor/manager. For additional information, please see the [US Associate Handbook](#).

Paid Time Off (PTO)

PTO accruals will remain the same for associates who participate in any WorkFlex arrangement. Please consult the [US Associate Handbook](#) for details on accruals.

Policy Modifications

Cognizant reserves the right to amend its policies as necessary. Any changes to the WorkFlex Arrangement Policy will be approved by the Head of HR, the Americas.

Version history

Revision Date	Description of Change
DEC-01-2020	Initial release
DEC-08-2021	Standardization of Template

MAY-02-2023

Standardization of Template

Policy Control Information

Policy Name: WorkFlex Policy - US

Department: Human Resources

Revision Date: MAY-02-2023

Effective Date: DEC-01-2021

Policy Owner: [Noreen Kamka](#), Head of HR, the Americas

Cognizant (Nasdaq-100: CTSI) engineers modern businesses. We help our clients modernize technology, reimagine processes and transform experiences so they can stay ahead in our fast-changing world. Together, we're improving everyday life. See how at www.cognizant.com or [@Cognizant](#).

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